

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

WAY2GO CARGO CORP.,

Complainant,

v.

DOCKET NO. 25-14

OAK WAY CARGO, LLC,

Respondent.

**COMPLAINANT’S MOTION TO COMPEL DEPOSITION OF RESPONDENT’S
CORPORATE REPRESENTATIVE**

Complainant, WAY2GO CARGO CORP., (“Complainant” or “Way2Go”), by and through undersigned counsel and pursuant to 46 C.F.R. § 502.150(a) and Federal Rule of Civil Procedure 37 hereby moves for an order compelling Respondent, OAK WAY CARGO, LLC (“Respondent” or “Oak Way”), designate its corporate representative for deposition and for sanctions, and in support thereof, states as follows:

1. The Commission’s November 20, 2025, Scheduling Order requires that Fact Discovery be complete by February 5, 2026, with the Close of Discovery including Depositions scheduled for February 26, 2026.

2. On January 15, 2026, Complainant formally requested to schedule the deposition of Respondent’s Corporate Representative and provided a copy of the Rule 30(b)(6) or 46 C.F.R. § 502.143(b)(6) areas of inquiry for the deposition. *A copy of the Email with Counsel and the Areas of Inquiry are attached hereto as **Exhibits A and B**, respectively.*

3. On January 21, 2026, counsel for Respondent said that some of the proposed dates were not suitable and provided no further information.

4. On January 26, 2026, undersigned counsel for Complainant and counsel for Respondent, Zalman Kass, met virtually to confer on pending discovery issues, including the scheduling of Respondent's Corporate Representative's deposition.

5. During this meet and confer, Mr. Kass explained that Respondent's position is that Complainant is not entitled to depose Respondent's Corporate Representative because Complainant already cross-examined Respondent's Corporate Representative during the evidentiary hearing on Way2Go's Motion for Preliminary Injunction¹, sought pursuant to 46 U.S.C. § 41306(a), which took place over four days in October 2025 (the "Injunction Hearing").

6. Complainant is entitled to depose the Respondent's representative. *See* 46 C.F.R. § 502.143(a). Respondent has offered no authority in support of its position that Complainant cannot depose the representative who testified in a limited capacity at a separate injunction hearing.

7. First, Complainant was given the opportunity only to cross-examine Oak Way's representative at the Injunction Hearing.

8. Second, the injunction pending before the District Court, while related to the instant action, is materially different and narrower in scope. The Federal Maritime Commission has exclusive jurisdiction to adjudicate the alleged violation of the Shipping Act, and the District Court may only determine whether a preliminary injunction is necessary to preserve the status quo until the Commission renders a meaningful decision on the merits. *See Schiavo ex rel. Schindler v. Schiavo*, 403 F.3d 1223, 1231 (11th Cir. 2005).

9. Further, Respondent's position completely disregards the fact that since the evidentiary hearing for the Preliminary Injunction, significant fact discovery has taken place, and

¹ This hearing was presided over before the Honorable Enjoliqué A. Lett in the US District Court for the Southern District of Florida (Case No: 25-cv-23445-WILLIAMS/LETT).

as a result, Complainant has obtained additional information regarding the allegations asserted in the pleadings, which was not available three months ago at the Injunction Hearing.

10. Due to Respondent's unfounded objection and refusal to designate a corporate representative for deposition, Complainant has been forced to seek intervention from this Commission, and therefore, seeks that Respondent be ordered to pay reasonable expenses incurred in making the motion, including attorney's fees, pursuant to Federal Rule of Civil Procedure 37(a)(5).

WHEREFORE, Complainant, WAY2GO CARGO CORP., respectfully requests that this Commission enter an order 1) compelling Respondent, OAK WAY CARGO, LLC, to designate its corporate representative within 2 days of the date of the Commission's Order for a deposition to take place within 10 days of the date of the Commission's Order; 2) requiring Respondent to pay reasonable expenses incurred by the Complainant in making this motion, including attorney's fees; and 3) granting such other and further relief as the Commission deems just and proper.

CERTIFICATE OF CONFERRAL

The undersigned counsel certifies that, prior to filing this motion, counsel for Complainant, Way2Go Cargo Corp. conferred with counsel for Respondent Oak Way Cargo, LLC via video teleconference on January 26, 2026, regarding the relief requested herein. Counsel for Respondent opposes the requested relief.

Dated: January 27, 2026

Respectfully submitted,

BY: /s/ Jennifer S. Roldan
Jennifer S. Roldan, Esq.
EPGD Attorneys at Law, P.A.
777 SW 37th Ave., Ste. 510
Miami, FL 33135
T: (786) 837-6787
F: (305) 718-0687
jennifer@epgdlaw.com

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed via electronic mail upon the Office of the Secretary at secretary at secretary@fmc.gov and served upon all counsel of record for OAK WAY CARGO, LLC at zkass@b2b.legal on this 27th day of January 2026.

BY: /s/ Jennifer S. Roldan
Jennifer S. Roldan, Esq.